IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

CA (PHC) 194-16
PHC Colombo Case
No. HCMCA 99/2014

BEFORE

COUNSEL

DECIDED ON

Prasanna Chamara Perera S-15711,
Welikada Prisons,
Colombo 09.

Accused-Appellant

Vs.

The Hon. Attorney General

Respondent

HON. JUSTICE K.K. WICKREMASINGHE HON. JUSTICE K. PRIYANTHA FERNANDO

Chathuri Wijesuriya, SC for the A.G.

20.12.2019

HON. JUSTICE K.K. WICKREMASINGHE

The Accused-Appellant Prasanna Chamara Perera has written a letter dated 18.11.2019 at Agunakolapellassa Prisons informing that he is willing to withdraw this case along with connected matters CA (PHC) 192/2016, CA (PHC) 194/2016 and CA (PHC) 195/2016 since he has only three more months to conclude his term of imprisonment (10.03.2020). Therefore, withdrawal is allowed by this Court. State has no objection for backdating the sentence. Considering the period he is in

1

Website Copy

Website Copy

•

remand, we decide to backdate the sentence of imprisonment to be implemented from the date of the sentence, namely 07.05.2014. Subject to the above variation of the sentence, the appeal is hereby dismissed without costs.

Registrar is directed to send a copy of this order to the learned High Court Judge and Prison Authorities.

JUDGE OF THE COURT OF APPEAL

HON. JUSTICE K. PRIYANTHA FERNANDO

I agree.

JUDGE OF THE COURT OF APPEAL

TW

2

Website Copy

Website Copy